

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALEV INAM YILDIZ,

Petitioner

VS.

VEDAT TAYLAN YILDIZ,

Respondent

) Case Number: FDI-26-802879

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE QUASH SERVICE OF SUMMONS, DISMISS ENTIRE ACTION AND
SANCTIONS

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 9 AM on 8/20/2026 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Wife shall be prepared to explain what information she intends to request from Husband or other entities through discovery which she believes is likely to lead to evidence showing that this Court may exercise jurisdiction over any part of the parties' family law action.

The Court notes that it is unlikely to find that the subpoenas Wife served on Fidelity, Wells Fargo, Charles Schwab, PayPal, Robinhood, and Vanguard (seeking information concerning the existence, ownership, balance activity, and disposition of accounts held at those institutions) are reasonably likely to establish a sufficient jurisdictional nexus between Husband and California, particularly because Wife has not identified how the requested account information would establish a jurisdictionally significant contact with California.

The Court would also like to hear argument from the parties regarding what impact, if any, the Turkish Court's 8/6/2026 order has on Husband's motion to quash, particularly the Turkish

1 Court's denial of Wife's request to impose precautionary measures on bank accounts in the United
2 States.

3 Wife shall also be prepared to explain the basis for her statement that "the Turkish Court has
4 refused to exercise jurisdiction over the financial accounts the Parties have in the United States," as
5 the Court does not see evidence supporting that assertion in the copy of the 8/6/2026 order attached
6 to Wife's 8/17/2026 declaration.

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8 **A. Procedural History**

9 1) According to the Petition for Legal Separation filed 4/21/2026, Petitioner Alev Inam Yildiz
10 (Wife) and Respondent Vedat Taylan Yildiz (Husband) married on 11/3/2014 and separated on
11 3/30/2026, for a marriage of 11 years and 5 months. The parties have one minor child, Arya
12 (DOB: 8/1/2023). In the Petition, Wife did not check any of the boxes under the "Residence
13 Requirements" section. Wife states the child resides in Turkey and "requests that any child
14 custody or visitation issues be reserved for the courts in Turkey."

15 2) Wife is represented by attorneys Douglas Dal Cielo and Brian Affrunti. Husband is represented
16 by attorney Robert Menache.

17 3) Husband's Motion to Quash

18 a. On 6/8/2026, Husband filed a Request for Order and Memorandum of Points and
19 Authorities, asking the Court to quash service of Summons, dismiss this case in its
20 entirety, and award Husband attorney's fees for bringing his motion. Husband states that
21 neither of the parties are domiciled in California, the marital domicile is in Turkey, and
22 the parties' child has never resided in California. Husband states that he was a student in
23 the United States between 2001 and 2007, where he studied first at the University of
24 Massachusetts and then at Stanford University. Husband states he worked at Google
25 between 2007 and 2018, during which time he became a naturalized citizen in 2014. On
26 11/3/2014, Husband married Wife in San Francisco. In 2020, Wife became a naturalized
27 citizen. In September 2017, the parties relocated to Turkey where they resided ever since,
28 except for a brief relocation to New York between November 2019 to February 2020 for
29 a work assignment. Husband also states that during their marriage the parties filed federal

1 taxes as expatriates and did not file California state taxes. Husband states that on
2 4/10/2026, Wife took Arya and traveled to California for a period of “approximately ten
3 days” (without Husband’s authorization) and filed the Petition for legal separation on
4 4/21/2026. Husband states that Wife may have departed California on 4/20/2026,
5 suggesting that the Petition may have been filed while Wife was not physically present in
6 California or was in transit out of the state. Husband states that Wife’s removal of the
7 child from California may have violated the standard family law restraining order which
8 prohibits removal of a minor child from California following the filing of a family law
9 Petition. On 5/11/2026, Wife then filed for divorce in Turkey. Husband states that
10 California lacks both personal jurisdiction over him and subject matter jurisdiction over
11 this divorce and custody action, and even if minimum contacts existed, the exercise of
12 jurisdiction would be unreasonable given the substantial burden on Husband. Husband
13 argues that his contacts with the state of California are not continuous or systemic, and so
14 the Court lacks general personal jurisdiction over him. Husband also argues that the
15 nexus between himself, California, and the litigation are insufficient to give rise to
16 specific personal jurisdiction. Husband argues he did not purposefully avail himself of
17 California forum benefits, the controversy does not arise out of Husband’s prior contacts
18 with California, and the exercise of jurisdiction fails the fair play and substantial justice
19 test. Husband argues, “The evidence and witnesses relevant to custody, support, and
20 property division are located in Turkey. Turkish courts are far better positioned to
21 adjudicate the parties' rights and obligations and to protect the interests of the child.”
22 Husband argues that neither party is domiciled in California, which means that California
23 lacks subject matter jurisdiction to grant a valid divorce. Husband also argues that
24 California is not the child’s home state, which means that California lacks jurisdiction
25 under the UCCJEA to make custody orders. Husband further argues that there is no
26 emergency which warrants an emergency custody order under Family Code section 3424.
27 Finally, Husband argues that California should decline jurisdiction as an inconvenient
28 forum under Family Code section 3427.
29

b. On 8/7/2026, Wife filed a Responsive Declaration and Memorandum of Points and Authorities asking the Court to deny Husband's 6/8/2026 Request for Order. Wife states that she filed her Petition for Legal Separation in California "for the sole purpose of preventing the dissipation of assets held and maintained by Husband in California in order to protect the marital estate pending divorce proceedings in Turkey." Wife argues, "There is nothing inconsistent with her filing for legal separation in California to protect the California based assets while pursuing a marriage dissolution in Turkey. It bears emphasis that the vast majority of their marital assets are held in California, and the Petition was filed to protect those assets in response to the threat made by Husband" (that he would leave Wife penniless should she file for divorce in Turkey). Wife argues, "Husband and Wife were married in California and built much of their life and wealth while living in California. Since relocating to Turkey, Husband has maintained the bulk of their marital assets in California and formed at least three businesses [Verilinux, Coronis Consulting, and LayerTen] that are based in California. In so doing, he has purposefully availed himself of the benefits and protections afforded by the State of California...For the reasons set forth herein, Husband is subject to the personal jurisdiction of this Court. Accordingly, Husband's Motion should be denied in its entirety and Husband should be required to file a response to Wife's Petition within a period not to exceed 30 days." Wife also argues, "In the unlikely event this Court grants Husband's Motion, the Court should deny Husband's request for monetary sanctions against wife. Husband has not, and cannot, demonstrate any basis for imposing monetary sanctions against Wife." Wife also states, "On information and belief, once the U.S./California based assets are identified through financial disclosure, those assets will be included in the marital property proceedings in Turkey and divided in accordance with Turkish law. Assuming that occurs, I have no intention to request for this Court to divide our marital property...My understanding of Turkish law is that the division of marital assets is a separate proceeding that will occur only after the divorce is finalized. Thus, it is imperative that my community interests in the California based assets be preserved through that time."

1 c. On 8/14/2026, Husband filed a Reply Declaration. Husband states that he opened
2 accounts with Vanguard, Wells Fargo, Charles Schwab, Fidelity, and Robinhood while
3 he lived and worked in California. Husband states those financial institutions operate
4 nationally and the accounts are not physical assets located in California. Husband states
5 that Verilinx is a Turkish company, not a California business. Husband states “Verilinx
6 has no United States entity, subsidiary, or registration. It has no United States customers
7 and has never generated any revenue. It has no California office, employees, or
8 operations. I perform my role for Verilinx from Istanbul. Petitioner relies on a Verilinx
9 website displaying the address ‘500 Terry Francine Street, San Francisco, CA 94158.’
10 That is not a Verilinx office. The website was created using a Wix template, and that
11 address is the default placeholder address contained in the template. It was inadvertently
12 left on the website and does not represent the location of Verilinx or any Verilinx
13 operation. Verilinx has never maintained an office at that address.” Husband states that
14 Coronis Consulting is a dormant Delaware LLC. Husband also states that “LayerTen has
15 never been incorporated, organized, or registered as a company in California, elsewhere
16 in the United States, or in Turkey. It has no office, employees, customers, or revenue. It is
17 an unlaunched project that I have been exploring and publicizing in anticipation of a
18 possible future venture.” Husband further states that he worked for Firefly, Inc. in March
19 2019 through early 2021 and that he performed the work remotely from Turkey except
20 for a temporary assignment in New York from November 2019 through February 2020.
21 Husband states his employment with Firefly ended in 2021 and he retains only a passive
22 minority ownership interest and has no management or operational role in the company
23 since his employment ended. Husband further states he has appeared in and is
24 participating in the Turkish divorce proceedings.

25 d. On 8/17/2026, Wife filed a Sur-Opposition to Husband’s Motion to Quash. Wife states,
26 “Based on a recent decision issued by the Turkish Court on August 6, 2026, the Turkish
27 Court has declined to exercise jurisdiction over the Parties financial assets based in the
28 United States and has declined to enforce any protective measures over those
29 accounts...Contrary to Respondent’s argument, to this point the Turkish Court does not

1 provide any protection for Petitioner against Respondent's threat to leave Petitioner
2 penniless. This action must be maintained to prevent Respondent from eliminating, or
3 diminishing, the Parties financial assets in the United States while the proceedings in
4 Turkey are ongoing."

- 5 a. On 8/17/2026, Wife's attorney filed a Declaration in Support of Sur-Opposition.
6 Attached to Wife's attorney's declaration is a copy of an order from the Turkish Court
7 which states in part: "16) As issues of warrant cannot be given to banks located in foreign
8 countries, the requests to impose precautionary measures on the banks in USA are
9 rejected. 17) As precautionary measures cannot be carried out on properties located in
10 foreign countries, the related request is rejected. 17) [sic.] Regarding banks located in
11 Türkiye; requests for precautionary measures are to be evaluated after written Responses
12 are received from the relevant Bank Directorates." Wife's attorney argues, "On
13 information and belief, to this point, the Turkish Court has refused to exercise jurisdiction
14 over the financial accounts the Parties have in the United States, and Respondent's claim
15 that this action is unnecessary due to the pending proceedings in Turkey is contradicted
16 by the Turkish Court Order. Thus, it is imperative that this proceeding not be dismissed
17 to ensure that Petitioner's community interest in the accounts held here in the United
18 States are not eliminated, or diminished, while the proceedings in Turkey are ongoing."

19 4) Wife's Request to Reschedule Hearing

- 20 a. On 8/5/2026, Wife filed a Request to Reschedule the 8/20/2026 hearing. Wife's attorney
21 states, "Petitioner opened and/or contributed to various financial accounts maintained in
22 California using community funds. The Petition was directed at preserving those US
23 based assets while Petitioner pursues marital dissolution proceedings in Turkey." Wife's
24 attorney also states that on 7/21/2026, Wife "caused six subpoenas to be issued to
25 multiple financial institutions that Petitioner is aware of that consist entirely of or contain
26 community funds to obtain further evidence concerning Respondent's financial activities
27 and connections to California. The information sought is directly relevant to the
28 jurisdictional issues raised by Respondent's RFO and is reasonably calculated to uncover
29 additional evidence demonstrating Respondent's continuing contacts with

1 California...Accordingly, Petitioner respectfully requests that the Court continue the
2 August 20, 2026 hearing for approximately three months to allow sufficient time to
3 complete this jurisdictional discovery.” Wife’s attorney cites *Hardell v. Vanzyl* (2024)
4 102 Cal.App.5th 960, 970 which states “A plaintiff attempting to assert jurisdiction over
5 a nonresident defendant is entitled to an opportunity to conduct discovery on the
6 jurisdictional facts necessary to sustain its burden of proof” and a continuance is
7 appropriate where the moving party demonstrates that the requested discovery is likely to
8 lead to evidence establishing jurisdiction. Wife’s attorney argues, “Petitioner has issued
9 narrowly tailored subpoenas to financial institutions seeking evidence of Respondent’s
10 continuing financial activities and contacts with California. The documents obtained
11 through the subpoenas will establish when the accounts were opened, including whether
12 they were created while Petitioner and Respondent resided in California. They will also
13 identify when contributions and distributions were made and reflect the accounts' activity
14 both during the time Petitioner and Respondent resided in California and following their
15 relocation to Turkey. This information should provide further evidence to establish
16 subject matter and personal jurisdiction over Respondent. The requested discovery bears
17 directly on the issue of personal jurisdiction, as it will reveal the timing, nature, and
18 location of the parties' financial activities and contacts, and Respondent’s continued
19 contacts with the State of California after relocating to Turkey.”

- 20 b. On 8/5/2026, Husband filed a Memorandum of Points and Authorities in Opposition to
21 Petitioner’s Ex Parte Application to Continue Hearing. Husband argues, “No exigent
22 circumstances existed requiring emergency intervention by the Court. Petitioner's use of
23 ex parte procedures unnecessarily increased litigation costs and burdened both
24 Respondent and the Court.” Husband also argues, “Although California courts possess
25 discretion to permit jurisdictional discovery, that discretion exists only where the
26 requested discovery is reasonably likely to uncover facts establishing jurisdiction.
27 Petitioner has made no such showing. Instead, Petitioner's request is premised entirely
28 upon speculation that Respondent may maintain accounts at various financial
29 institutions... The existence of banking relationships, standing alone, does not establish

purposeful availment or satisfy due process...Petitioner never explains how records showing deposits or withdrawals would transform otherwise insufficient contacts into constitutionally adequate minimum contacts. Accordingly, the requested subpoenas are legally incapable of producing the evidence necessary to defeat Respondent's Motion to Quash." Moreover, "Petitioner has already commenced proceedings in Turkey seeking adjudication of the parties' marital estate, including assets located worldwide...Those proceedings encompass the very financial information Petitioner now seeks through California discovery. This demonstrates that the subpoenas are directed toward locating and investigating Respondent's assets—not establishing personal jurisdiction. Jurisdictional discovery is not a substitute for asset discovery. Nor may a party use a motion to quash as an opportunity to conduct expansive financial discovery in aid of parallel foreign proceedings. The breadth of Petitioner's six subpoenas confirms that they are aimed at Respondent's financial affairs generally rather than any identifiable jurisdictional fact." Husband also requests monetary sanctions for Wife's "unnecessary ex parte application."

- c. On 8/6/2026, Wife filed a Reply arguing she filed a request to reschedule the hearing under California Rules of Court, rule 5.95, and her motion is not an ex parte application under California Rules of Court, rule 3.1202. Wife also argues, "Requiring Petitioner to conclusively establish all jurisdictional facts that the requested discovery is intended to uncover would effectively require Petitioner to prove jurisdiction as a prerequisite to obtaining discovery aimed at establishing jurisdiction."

5) Future Hearing Dates

- a. There is a future hearing date set for 10/29/2026 on Husband's Request for Order filed 8/10/2026 to quash Wife's "Deposition Subpoenas for Production of Business Records directed to Fidelity Brokerage Services, Wells Fargo Bank, N.A., Charles Schwab & Co., Inc., PayPal, Inc., Robinhood Markets, Inc., and The Vanguard Group, Inc., pending the Court's determination of the jurisdictional issues currently before the Court in Respondent's Request for Order set for hearing on August 20, 2026." Husband attached copies of the subpoenas he seeks to quash. The subpoenas seek information related to the

1 existence, ownership, balance activity, and disposition of accounts held at those
2 institutions.

3 **B. Findings and Order**

- 4 1) **The parties are ordered to appear.**
- 5 2) **Wife shall be prepared to explain what information she intends to request from Husband or**
6 **other entities through discovery which she believes is likely to lead to evidence showing that**
7 **this Court may exercise jurisdiction over any part of the parties' family law action.**
- 8 3) **The Court notes that it is unlikely to find that the subpoenas Wife served on Fidelity, Wells**
9 **Fargo, Charles Schwab, PayPal, Robinhood, and Vanguard (seeking information**
10 **concerning the existence, ownership, balance activity, and disposition of accounts held at**
11 **those institutions) are reasonably likely to establish a sufficient jurisdictional nexus between**
12 **Husband and California, particularly because Wife has not identified how the requested**
13 **account information would establish a jurisdictionally significant contact with California.**
- 14 4) **The Court would also like to hear argument from the parties regarding what impact, if any,**
15 **the Turkish Court's 8/6/2026 order has on Husband's motion to quash, particularly the**
16 **Turkish Court's denial of Wife's request to impose precautionary measures on bank**
17 **accounts in the United States.**
- 18 5) **Wife shall also be prepared to explain the basis for her statement that "the Turkish Court**
19 **has refused to exercise jurisdiction over the financial accounts the Parties have in the**
20 **United States," as the Court does not see evidence supporting that assertion in the copy of**
21 **the 8/6/2026 order attached to Wife's 8/17/2026 declaration.**
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